

24CHCV03397 24CHCV03397

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Case Number: 24CHCV03397 Hearing Date: July 28, 2026 Dept: F49

Dept. F49

Date: 7/28/26

Case Name: Estefania Valotto vs. Kimberly Lizette

Portillo; Luis Portillo; and Does 1-99

Case No. 24CHCV03397

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 28, 2026

MOTION TO COMPEL RESPONSES

TO DEMAND TO PRODUCE DOCUMENTS; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV03397

Motion filed: 2/19/26

MOVING PARTY: Defendant Kimberly Lizette Portillo

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff to respond to Defendant's Demand to Produce, Set One, and awarding monetary sanctions in the amount of \$380.00.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Estefania Valotto ("Plaintiff") in a motor vehicle accident that occurred while Plaintiff was travelling on northbound Interstate 5. On September 19, 2024, Plaintiff filed the Complaint against Kimberly Lizette Portillo ("Defendant"), Luis Portillo, and Does 1 through 99, alleging motor vehicle and general negligence. On July 17, 2025, at the request of Plaintiff, Luis Portillo was dismissed from the action.

On December 18, 2025, Defendant filed her Answer to the Complaint.

On February 19, 2026, Defendant filed the instant motion to compel Plaintiff to respond to Defendant's Demand to Produce, Set One (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

A.

Motion to Compel Responses to Requests for Production

"A defendant may make a demand for inspection, copying, testing, or sampling without leave of court at any time." (Code Civ. Proc. § 2031.020, subd. (a).) "Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the

demand is directed shall serve the original of the response to it on the party making the demand.” (§ 2031.260, subd. (a).) Parties may agree to extend the time for service of a response to a set of production requests. (§ 2031.270, subd. (a).)

If a party fails to serve a timely response to a demand for inspection, copying, testing or sampling, the party to whom the demand is directed waives any objection to the demand, and the demanding party may move for an order compelling a response. (Code Civ. Proc. § 2031.300, subds. (a), (b).) A party may be relieved from waiver if it has subsequently served a substantially code-compliant response and the failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (§ 2031.300, subd. (a).)

Defendant served her Demand to Produce, Set One on Plaintiff via electronic service on December 18, 2026. (Mot., at p. 3; Brockenbrow Decl., Exh. A, Proof of Service.) Responses to the demand were accordingly due on January 21, 2026. (Code Civ. Proc., §§ 1010.6, 2031.260.) Defendant's counsel attests that, as of the filing of the Motion, she had not received any responses to the demand, despite reaching out on January 26, 2026 to inquire about the non-response and voluntarily granting an extension until January 30, 2026 to serve objection-free responses. (Brockenbrow Decl., ¶ 6, Exh. B.)

Based on the foregoing, the Court finds that Plaintiff has failed to serve timely responses to Defendant's Demand to Produce, Set One, thereby waiving any objections to those demands, including those based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a).)

Plaintiff has not opposed the Motion or moved separately for relief from the waiver of objection. Further, there is no indication that Plaintiff has subsequently served responses prior to the hearing on the Motion. The Court thus finds that relief from waiver under Code of Civil Procedure section 2031.300, subdivision (a) is unavailable.

Accordingly, the Court GRANTS the Motion.

B.

Monetary Sanctions

“[T]he court shall impose a monetary

sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300(c)).

Code of Civil Procedure section 2023.030

authorizes the Court to impose monetary sanctions against any party, person, or attorney who engages in conduct that constitutes a misuse of the discovery process. Misuses of the discovery process include failing to respond to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).) Further, the Court may award sanctions “in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed[] ... or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

Defendant

requests monetary sanctions against Plaintiff and her counsel of record in the amount of \$380.00, calculated as one hour spent preparing the Motion and one hour for appearance at the hearing, plus \$60 in filing fees. (Brockenbrow Decl., ¶ 7.)

Given that Plaintiff

has not served responses to the demands or filed an opposition providing good cause for non-response, the Court finds sanctions appropriate. The Court finds Defendant's counsel's hourly rate of \$160.00 and the hours claimed to be reasonable.

Defendant's

request for monetary sanctions is therefore GRANTED.

CONCLUSION

The Court GRANTS Defendant Kimberly Lizette Portillo's motion to compel Plaintiff Estefania Valotto's responses to Defendant's Demand to Produce, Set One. Plaintiff is ordered to serve verified responses, without objection, to Defendant's Demand to Produce, Set One within 30 days.

The

Court GRANTS Defendant's request for sanctions. Plaintiff

Estefania Valotto and his attorney of record are ordered to pay \$380.00 to Defendant within 30 days.

Moving party to give notice.